



POLICE DEPARTMENT

August 7, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301513 (Incident Date: February 22, 2023) regarding Police Officer Stefan Weaver, Tax No. 965901 (DADS No. 2024-30883)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301513, pertaining to Police Officer Stefan Weaver. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Weaver would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer Weaver engaged in an improper stop and frisk of an individual. During the interaction, he refused to provide his shield number or his business card, as required. While the Police Commissioner agrees with the imposition of a penalty for the misconduct in this case, he recognizes that Police Officer Weaver has no prior substantiated CCRB cases and no formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Police Officer Weaver a Schedule "B" Command Discipline for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

August 12, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202301513 (Incident Date: February 22, 2023) regarding Police Officer Stefan Weaver, Tax No. 965901 (DADS No. 2024-30883)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated August 7, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Weaver and issue a Schedule “B” Command Discipline. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against PO Weaver would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and impose the penalty of a Schedule B Command Discipline.

While it respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specification upon PO Weaver be served, the CCRB acknowledges you are the final arbiter of discipline and that your decision here is not on its face unreasonable.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

August 14, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

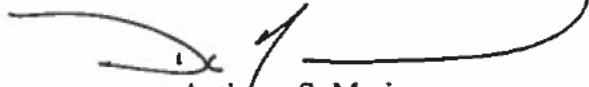
Re: CCRB Case No. 202301513 (Incident Date: February 22, 2023) regarding Police Officer Stefan Weaver, Tax No. 965901 (DADS No. 2024-30883)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 12, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Stefan Weaver. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Weaver for the reasons expressed in my August 7, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline with the forfeiture of six (6) vacation days for the substantiated allegations.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office